

Child Abuse (< 18 years old) Recognition and Reporting

Standard:

Assessment of an abused child is based upon the following principles:

- **Protect** the child from harm.
- **Suspect** that the child may be a victim of abuse, especially if the injury/illness is not consistent with the reported history.
- **Respect** the privacy of the child and family.
- **Collect** and document as much information as possible.

Purpose:

Children are at risk of abuse due to physical, sexual, emotional maltreatment or neglect. All are harmful to their physical and emotional development and all require intervention. Under the Child Abuse Prevention and Treatment Act (CAPTA), child abuse and neglect means, at a minimum, *"Any recent act, or failure to act, on the part of a parent or caretaker, which results in death, serious physical or emotional harm, sexual abuse, or exploitation, or an act or failure to act which presents an imminent risk of serious harm."* By Texas State law, all healthcare providers are obligated to report cases of suspected child abuse or neglect to either the local law enforcement agency **or** the Texas Department of Family and Protective Services (TDFPS) hotline 800-252-5400.

Application:

1. Stabilize and treat all injuries.
2. Immediately request law enforcement assistance.
3. Do not initiate a report to law enforcement or social services in front of the patient, parent, or caregiver.
4. If sexual abuse is suspected, discourage the patient from washing or going to the bathroom.
5. If patient, parent, or caregivers are hostile, or refuse access/transport protect your safety and immediately request law enforcement assistance if not already requested.
6. Do not confront or become hostile to the parent or caregiver.
7. Document:
 - In their own words using quotation marks all statements by the patient, parent, or caregiver, including statements made about the manner of the injuries
 - Describe any abnormal behavior of the patient, parent, or caregiver
 - The condition of the environment and other residents present
 - Who received the report of suspected abuse or neglect
 - If reporting is done after PCR completion, an addendum should be written and attached with reporting date, time, who reported to, etc. This will serve to protect the Provider
8. Healthcare Providers are required to immediately report any suspicious findings to the Texas Department of Family and Protective Services (TDFPS) hot line 800-252-5400. This phone is answered 24 hours everyday. This should occur as soon as reasonably possible at the hospital after patient transfer is completed. Providers may need to request a **brief** "out of service time" for this process to be completed. Other than the phone interview, there are no other immediate written documentation reporting requirements by the State.
9. When the patient is transported the hospital; the RN/MD receiving report should be advised of the conditions/situation the patient was found in. Law Enforcement may also be notified if available. Notification of Law Enforcement does meet the "minimum requirement" of the State. However, notification of Hospital Staff only does not meet the State reporting requirements for abuse of people < 18 years old. For people ≥18 years old Refer to Clinical Standard on Domestic Violence and Abuse.